

**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT  
IN AND FOR PINELLAS COUNTY, FLORIDA  
CIRCUIT DIVISION**

CASE NO.: 26-002613-CI  
DIVISION: SECTION 11  
JUDGE: AMY M. WILLIAMS

DENNIS M. HEWETT,  
Plaintiff,

vs.

BRANDI LYNN RODGERS,  
Defendant, sued as BRANDI ROGERS.

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**DEFENDANT'S ANSWER AND AFFIRMATIVE DEFENSES  
TO PLAINTIFF'S AMENDED COMPLAINT**

COMES NOW Defendant, BRANDI LYNN RODGERS, and files this Answer and Affirmative Defenses to Plaintiff's Amended Complaint.

**GENERAL DENIAL**

Except as expressly admitted below, Defendant denies each allegation of Plaintiff's Amended Complaint.

**RESPONSES TO ALLEGATIONS**

Defendant responds to the numbered allegations of Plaintiff's Amended Complaint as follows. If the Amended Complaint contains additional numbered paragraphs, Defendant denies them.

1. In response to the jurisdictional allegations of Paragraph 1 of the Amended Complaint, Defendant is without knowledge and therefore denies the allegations.
2. In response to Paragraph 2 of the Amended Complaint, Defendant admits she is BRANDI LYNN RODGERS, also sued as BRANDI ROGERS. Defendant admits Plaintiff is DENNIS M. HEWETT. Defendant denies any remaining allegations in Paragraph 2.
3. In response to Paragraph 3 of the Amended Complaint, Defendant admits the action concerns real property located at 13721 94th Avenue, Seminole, Florida 33776. Defendant admits she currently resides there and resided there with RICHARD W. MELILLO. Defendant denies Plaintiff has accurately stated Defendant's legal rights.
4. In response to Paragraph 4 of the Amended Complaint, Defendant denies Plaintiff has valid superior title. Defendant states the property was the home of RICHARD W. MELILLO. Defendant is informed and believes RICHARD W. MELILLO signed a quit claim deed that was not notarized before his death. Defendant is informed and believes

Plaintiff claims through a will as a relative of RICHARD W. MELILLO. Defendant denies the chain-of-title allegations and Exhibit A to the extent they conflict with these facts.

5. In response to Paragraph 5 of the Amended Complaint, Defendant denies valid statutory notice to vacate was served. Defendant admits Plaintiff gave informal papers requesting that she leave shortly before her answer deadline, but denies those papers satisfied Florida notice requirements.
6. In response to Paragraph 6 of the Amended Complaint, Defendant denies any landlord-tenant relationship with Plaintiff. Defendant admits she lived at the property with RICHARD W. MELILLO as domestic partners and not as Plaintiff's tenant.
7. In response to Paragraph 7 of the Amended Complaint, Defendant denies unlawful trespass or wrongful withholding of possession. Defendant states she resided with the knowledge and consent of RICHARD W. MELILLO and contributed substantial caregiving, labor, repairs, and personal funds to the property. Defendant further states that while she was at work, a motor vehicle belonging to RICHARD W. MELILLO and used by Defendant was removed from the property. When Defendant returned, the vehicle was gone. No tow notice, receipt, or contact card was left. There was no court order and no law enforcement present. Defendant states the removal was done on Plaintiff's order. Defendant does not yet know the identity of the towing company or person who physically removed the vehicle. Defendant had a gold and platinum cross pendant that Defendant kept in the vehicle pursuant to a promise she made to RICHARD W. MELILLO, her deceased domestic partner with whom she intended to marry, to keep it in the car for their protection during travels. The pendant has not been returned to her.
8. In response to Paragraph 8 of the Amended Complaint, Defendant denies Plaintiff is entitled to damages as alleged, or at all.
9. In response to Paragraph 9 of the Amended Complaint, Defendant denies Plaintiff is entitled to attorney's fees or costs except as may be awarded after proper proof.
10. In response to the prayer for relief of the Amended Complaint, Defendant denies Plaintiff is entitled to any relief requested.

### **AFFIRMATIVE DEFENSES**

Pursuant to Florida Rule of Civil Procedure 1.110(d), Defendant affirmatively pleads the following defenses:

#### **FIRST AFFIRMATIVE DEFENSE — FAILURE TO STATE A CAUSE OF ACTION**

1. Plaintiff's Amended Complaint fails to state a cause of action upon which relief may be granted against Defendant.

2. Defendant was not Plaintiff's tenant and no rental agreement existed between Defendant and Plaintiff under F.S. § 83.43.
3. The dispute concerns title, possession after death of the former owner, and equitable interests, not a standard landlord-tenant default.

#### **SECOND AFFIRMATIVE DEFENSE — LACK OF STANDING AND SUPERIOR RIGHT TO POSSESSION**

1. Plaintiff has not proven valid superior title or right to possession as required for ejectment under F.S. § 66.021.
2. Title and possession disputes involving RICHARD W. MELILLO's property are intertwined with probate case 26-000874-ES.
3. Plaintiff must prove a completed chain of title before obtaining possession from Defendant.

#### **THIRD AFFIRMATIVE DEFENSE — FAILURE TO JOIN NECESSARY PARTIES**

1. The estate of RICHARD W. MELILLO and the personal representative, if any, are necessary parties to resolve title and possession.
2. Probate case 26-000874-ES is related and pending.
3. Plaintiff cannot obtain complete relief against Defendant without joining necessary estate parties.

#### **FOURTH AFFIRMATIVE DEFENSE — IMPROPER NOTICE**

1. Plaintiff did not provide notice complying with F.S. § 83.56.
2. The only papers given to Defendant were informal documents shortly before her answer deadline.
3. Informal papers do not satisfy Florida statutory notice requirements for removal.

#### **FIFTH AFFIRMATIVE DEFENSE — TITLE DISPUTE / DEFECTIVE CONVEYANCE**

1. Defendant is informed and believes RICHARD W. MELILLO signed a quit claim deed that was not notarized and therefore was not recordable under F.S. §§ 689.01 and 695.03.
2. Plaintiff claims through a will as a relative of RICHARD W. MELILLO.
3. A genuine dispute exists regarding whether Plaintiff obtained valid title superior to Defendant's equitable interests.

**SIXTH AFFIRMATIVE DEFENSE — EQUITABLE INTEREST / CONSTRUCTIVE TRUST**

1. Defendant resided at the property for a substantial period with RICHARD W. MELILLO as his domestic partner.
2. Defendant provided substantial caregiving to RICHARD W. MELILLO, including nursing and personal care before his death.
3. Defendant contributed labor, repairs, and personal funds to the property and household.
4. It would be inequitable for Plaintiff to obtain possession without accounting for Defendant's contributions and reliance.

**SEVENTH AFFIRMATIVE DEFENSE — HOMESTEAD AND DEVISE RESTRICTIONS**

1. The property was the residence of RICHARD W. MELILLO and Defendant.
2. Defendant reserves all rights under Article X, Section 4 of the Florida Constitution and F.S. § 732.4015 regarding homestead and devise restrictions.
3. To the extent Plaintiff relies on a will, the validity and effect of any devise must be determined before possession is awarded.

**EIGHTH AFFIRMATIVE DEFENSE — UNCLEAN HANDS AND IMPROPER SELF-HELP**

1. While Defendant was at work, a motor vehicle belonging to RICHARD W. MELILLO and used by Defendant was removed from the property.
2. When Defendant returned, the vehicle was gone. No tow notice, receipt, or contact card was left.
3. The removal occurred on Plaintiff's order, without a court order and without law enforcement.
4. Plaintiff was not entitled to use self-help to remove personal property while title and possession are disputed.
5. Defendant had a gold and platinum cross pendant that Defendant kept in the vehicle pursuant to a promise she made to RICHARD W. MELILLO, her deceased domestic partner with whom she intended to marry, to keep it in the car for their protection during travels. The pendant has not been returned.
6. Such conduct was inequitable and supports denial of the equitable relief Plaintiff seeks.

**NINTH AFFIRMATIVE DEFENSE — CONVERSION / WRONGFUL REMOVAL OF PERSONAL PROPERTY**

1. The missing vehicle was personal property associated with RICHARD W. MELILLO and Defendant's household at the property.
2. Plaintiff ordered removal of the vehicle without Defendant's consent, without notice, and without lawful authority or due process.
3. Defendant had a gold and platinum cross pendant that Defendant kept in the vehicle pursuant to a promise she made to RICHARD W. MELILLO, her deceased domestic partner with whom she intended to marry, to keep it in the car for their protection during travels.
4. The pendant and other contents of the vehicle have not been recovered.
5. Defendant does not yet know the identity of the towing company or person who physically removed the vehicle and reserves all rights relating to its location, contents, and damages.

**TENTH AFFIRMATIVE DEFENSE — RESERVATION TO AMEND**

1. Defendant reserves the right to amend this Answer to assert counterclaims and additional defenses as permitted by Rule 1.190 after further investigation and discovery.

**PRAYER FOR RELIEF**

WHEREFORE, Defendant requests that this Court deny the relief sought in Plaintiff's Amended Complaint, dismiss the action with prejudice, or alternatively enter judgment for Defendant; order return of Defendant's gold and platinum cross pendant and other personal property removed from the vehicle; and grant such other relief as the Court deems proper.

Respectfully submitted,

/s/ BRANDI LYNN RODGERS

BRANDI LYNN RODGERS

Defendant, Pro Se

13721 94th Avenue, Seminole, Florida 33776

Telephone: \_\_\_\_\_

Email for service: \_\_\_\_\_

Dated: \_\_\_\_\_, 2026

**CERTIFICATE OF SERVICE**

I CERTIFY that on 6/29, 2026, a true and correct copy of the foregoing Defendant's Answer and Affirmative Defenses to Plaintiff's Amended Complaint was furnished to the persons listed below by ☐ the Florida Courts E-Filing Portal [YES ☐ electronic mail [YES] hand delivery ☐ United States Mail:

Joseph M. Murphy, Esq.  
DeLoach Hofstra and Cavanis, P.A.  
8640 Seminole Boulevard  
Seminole, Florida 33772  
Attorney for Plaintiff

/s/ BRANDI LYNN RODGERS  
BRANDI LYNN RODGERS  
Defendant, Pro Se